

The Orissa Gift Goods (Unlawful Possession) Act, 1964

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State of Odisha - Act

The Orissa Gift Goods (Unlawful Possession) Act, 1964

ODISHA

India

The Orissa Gift Goods (Unlawful Possession) Act, 1964

Act 13 of 1964

Published in Gazette 13 on 23 December 2016

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The Orissa Gift Goods (Unlawful Possession) Act, 1964

Act No. 13 of 1964

An Act to provide for punishment for unlawful possession of gift goods supplied by certain relief organizations.

Be it enacted by the Legislature of the State of Orissa in the Fifteenth Year of the Republic of India as follows:

1.

Short title, extent and commencement. -

(1)

This Act may be called the Orissa Gift Goods (Unlawful Possession) Act, 1964.

(2)

It shall extend to the whole of the State of Orissa.

(3)

It shall come into force at once.

2.

Definitions -

In this Act unless the context otherwise requires-

(a)

'gift goods' means any of the following goods, namely:

(i)

cornmeal;

(ii)

milk powder;

(iii)

vegetable oil;

supplied by way of gift, by any relief organization to any State Government or to the Central Government or to any other person on behalf of such Government:

(b)

'relief organization' means any organization specified in the Schedule appended to this Act.

3.

Unlawful possession of gift goods to be an offence -

Whoever without reasonable cause is in possession of or deals with, any gift goods otherwise than in conformity with the scheme relating to the supply, distribution and custody of such goods shall, on conviction, be liable to be punished with imprisonment for a term, which may extend to two years or with fine or with both.

Explanation - Ignorance of the identity of the goods being gift goods shall not by itself be deemed to be 'reasonable cause' for the purposes of this section.

4.

Offences to be cognizable and triable by First Class Magistrate

All offences punishable under section 3 shall be cognizable and no Court inferior to that of a Magistrate of the First Class shall try such offence.

5.

Power to amend the Schedule

The State Government may by notification, add any organization to, or omit any organization shall be deemed to be included in, or as the case may be, omitted from the schedule.

6.

Notification to be laid before the Legislature -

Every notification issued under this Act shall come into force with effect from the date on which it is published and shall, as soon as possible, after it is published, be laid before the Legislative Assembly for a total period of fourteen days which may be comprised in one or more sessions and shall be subject to such modifications as the Assembly may make during the said period.

[See Section 2 (b)]

(1)

United Nations Children's Fund (UNICEF)

(2)

Co-operative for American Relief Everywhere (CARE)

(3)

Church World Service

(4)

Lutheran World Relief

(5)

Catholic Relief Service

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